

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
September 24, 2026  
8:30 AM/1:30 PM

**17. JAYDA GORDON V. JOAQUIN SANCHEZ**

**26FL0604**

Petitioner filed a Request for Order (RFO) on June 30, 2026, following the denial of an ex parte application for emergency orders. The RFO seeks child custody and child support orders. Petitioner did not concurrently file an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on August 13, 2026, and a review hearing on September 24<sup>th</sup>. There is no Proof of Service showing Respondent was properly served.

Respondent filed a Responsive Declaration to the ex parte application on June 30, 2026. There is no Proof of Service for this document, therefore, the court cannot consider it.

Nevertheless, both parties appeared at the CCRC appointment and were able to reach many agreements. A report with the parties' agreements as well as recommendations was prepared on September 9, 2026. Copies were mailed to the parties on September 10<sup>th</sup>.

The court has read and considered the filings as outlined above. The court finds good cause to proceed with the child custody portion of the RFO only. The court finds the agreements and recommendations as set forth in the September 9<sup>th</sup> CCRC report are in the best interest of the minor. The court adopts the agreements and recommendations as set forth.

The court drops the request for child support from calendar due to the lack of proper service as well as for Petitioner's failure to file and serve an Income and Expense Declaration. "For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #17: THE COURT FINDS GOOD CAUSE TO PROCEED WITH THE CHILD CUSTODY PORTION OF THE RFO ONLY. THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH IN THE SEPTEMBER 9<sup>TH</sup> CCRC REPORT ARE**

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**IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH.**

**THE COURT DROPS THE REQUEST FOR CHILD SUPPORT FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE AS WELL AS FOR PETITIONER'S FAILURE TO FILE AND SERVE AN INCOME AND EXPENSE DECLARATION.**

**PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

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**19. KYRA MCAFFEE V. MAXWELL MCAFFEE (JOINED PARTY: BRIAN AND CORRINE BUNCH)****PFL20210499**

*Order to Show Cause*

Joined Parties filed an Order to Chow Cause and Affidavit for Contempt on January 12, 2026. Petitioner and Respondent were properly served. Parties appeared on March 19, 2026, for the initial arraignment. The court appointed the office of the Public Defender to Petitioner, subject to their review and determination of eligibility.

Parties appeared on June 11, 2026, for further arraignment. The Office of the Public Defender declared an overwork conflict. As such, they were thanked and relieved. The Alternate Public Defenders Office was subsequently appointed. Counsel then requested the matter be continued. The court granted the request to continue.

Parties are ordered to appear for the arraignment.

*Request for Order*

Joined Parties filed a Request for Order (RFO) on June 29, 2026, seeking modification of visitation orders. Despite attending Child Custody Recommending Counseling (CCRC) within the prior six months, the parties were referred to CCRC with an appointment on August 14, 2026, and a review hearing on September 24, 2026. All parties were mail served on June 30, 2026.

Petitioner filed a Responsive Declaration on August 14, 2026. There is no Proof of Service for this document, therefore, the court cannot consider it.

The parties attended CCRC and were unable to reach any agreements. A report with recommendations was prepared on September 9, 2026, and mailed to the parties on September 10<sup>th</sup>.

Respondent has not filed a Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds the recommendations as set forth in the September 9<sup>th</sup> CCRC report to be in the best interest of the minor. The court adopts the recommendations with the following clarification. Joined Parties shall have one time per month visitation with Weston and Jackson on the 4<sup>th</sup> weekend of the month from Saturday at 12:00 PM to Sunday at 6:00 PM.